

- 13. Overruled.
- 14. Overruled.
- 15. Overruled.
- 16. Overruled.
- 17. Overruled.
- 18. Overruled.
- 19. Overruled.
- 20. Sustained.

13. 9:00 AM CASE NUMBER: C26-00456
CASE NAME: SEBRION MCHENRY-STEWART VS. JESSE GILLESPIE
HEARING IN RE: MOTION TO CONSOLIDATE CASES
FILED BY:
TENTATIVE RULING:

The Court denies this Motion without prejudice for lack of proof of service on defendants in both matters.

14. 9:00 AM CASE NUMBER: C26-00702
CASE NAME: ABDUL KHAMOSH VS. ZAKIA KHAMOSH WAKILY
***HEARING ON MOTION IN RE: STRIKE PURSUANT TO CCP 425.16**
FILED BY: KHAMOSH WAKILY, ZAKIA
TENTATIVE RULING:

Defendants' special motion to strike pursuant to Code of Civil Procedure section 425.16 is **denied**.

Background

Plaintiff Abdul Salam Khamosh alleges that he is a prominent businessman in the Afghan-American community who operates multiple gas station businesses. (Plaintiff's February 27, 2026 Complaint ["Compl."] ¶ 7.) Between 2008 and 2013, Plaintiff personally financed, advanced, and managed his late father Dr. Mohammed Aslam Khamosh's legal claims against the United States government regarding ancestral land in Kapisa Province, Afghanistan, incurring hundreds of thousands of dollars in out-of-pocket expenses and over \$1 million in lost income. (Compl. ¶¶ 17-23.) In recognition of these personal and financial sacrifices, his father executed a California Statutory Will on January 25, 2013, devising his entire estate to Plaintiff. (Compl. ¶ 24.) Following the father's death in January 2016, the federal claim settled for \$195,000, which Plaintiff alleges constituted the sole asset of the estate. (Compl. ¶¶ 25-26.) Plaintiff petitioned for probate in Contra Costa County Superior Court under Case No. P16-00362. (Compl. ¶ 28.) Defendant Zakia Khamosh Wakily ("Wakily") filed an objection and will contest strictly limited to five grounds: improper statutory execution/attestation, lack of testamentary intent, revocation by a purported living trust, mistake of fact regarding the purpose of the document, and undue influence. (Compl. ¶ 29.) The 2016 will contest contained no allegations of criminal forgery, fraud, theft of estate assets, or overseas bank embezzlement. (*Id.* ¶ 29; Defs.' RJN, Exh. 2.) In response to the contest, Defendants Mohammed Omar Khamosh ("Omar") and Najia Khair ("Khair") submitted sworn declarations under penalty of perjury attesting that the will reflected their father's intent, that the estate possessed no assets other than the \$195,000 federal settlement, and that Wakily's accusations against Plaintiff were "vicious lies" that were "totally untrue." (Compl. ¶¶

30-31; Defs.' RJN, Exh. 5.) Wakily subsequently dismissed her contest, and on December 8, 2016, the probate court admitted the will and appointed Plaintiff executor with full authority. (Compl. ¶¶ 33-34.)

Plaintiff alleges that nearly a decade after the probate proceedings concluded and without any active or contemplated litigation pending, Defendants initiated a "coordinated campaign of spreading false and defamatory statements against [Plaintiff] throughout the Afghan-American community." (Compl. ¶¶ 1, 4, 37.) This campaign was not comprised of statements made in court or repetitions of the 2016 contest, but rather new, accusations that Plaintiff forged his father's signature on the will, stole estate assets, received millions of dollars in illicit lease payments from the family land, and embezzled \$50 million from a nonexistent Turkish bank account to purchase real property and capitalize his thirteen gas station businesses. (Compl. ¶¶ 1, 4, 37-39, 46.) Specifically, Plaintiff alleges that at a May 2025 family gathering in Afghanistan, Defendants insisted to assembled relatives and community members that Plaintiff was collecting millions in lease payments from the ancestral land. (Compl. ¶¶ 45-46.) On January 17, 2026, at a memorial prayer gathering in Hayward attended by approximately 200 people, Omar publicly accused Plaintiff of theft, will forgery, and stealing \$50 million from Turkey, falsely claiming to possess documentary proof. (Compl. ¶¶ 41-43.) Wakily also left defamatory voicemails for Plaintiff and his sister asserting similar accusations. (Compl. ¶ 48.) Plaintiff further alleges that Defendants ignored a February 3, 2026 formal cease-and-desist letter demanding production of the purported documentation (Compl. ¶¶ 51-52), and engaged in extrajudicial self-help by traveling to Afghanistan to work through the Taliban regime to strip Plaintiff's name from the land title and register themselves as heirs. (Compl. ¶¶ 5, 44, 49-50.) Plaintiff claims this conduct caused severe emotional distress, serious physical illness, reputational injury, and substantial lost business opportunities. (Compl. ¶¶ 53-55.)

The verified complaint asserts eleven causes of action based on these allegations: (1) defamation *per se*; (2) defamation *per quod*; (3) conversion; (4) conspiracy; (5) intentional misrepresentation; (6) negligent misrepresentation; (7) intentional infliction of emotional distress; (8) intentional interference with prospective economic advantage; (9) trespass to chattels; (10) declaratory relief; and (11) injunctive relief.

The first, second, and fifth through eighth causes of action rest on allegations that Defendants published unprivileged, false statements to third-party family and community members accusing Plaintiff of forgery, theft, and embezzlement. The third, ninth, and tenth causes of action seek relief arising from extrajudicial efforts to retitle the Kapisa real property through the Taliban regime. The fourth and eleventh causes of action seek derivative conspiracy liability and injunctive remedies based on that underlying conduct.

On April 26, 2026, Defendants filed this anti-SLAPP motion arguing that the entire complaint arises from protected activity because the claims are based on the 2016 probate proceeding and Wakily's underlying will contest. Defendants argue that Plaintiff's own complaint concedes this action merely revives the assertions and grievances from the probate proceeding, bringing the challenged statements within the scope of section 425.16, subdivision (e). Under the second prong, Defendants argue that Plaintiff cannot establish a probability of prevailing on any claim because all alleged communications are barred by the litigation privilege in Civil Code section 47, subdivision (b). Defendants further argue that Plaintiff cannot establish minimal merit on the individual causes of action, asserting that conversion and trespass to chattels do not apply to real property, the fraud and

misrepresentation claims lack reliance, the conduct alleged is insufficient to support intentional infliction of emotional distress, Plaintiff does not adequately plead prospective economic advantage, and declaratory relief is unavailable on these facts. Accordingly, Defendants seek an order striking the complaint and an award of attorney fees and costs pursuant to section 425.16, subdivision (c)(1) to be determined on subsequent motion.

On August 27, 2026, Plaintiff filed an opposition arguing that Defendants fail to satisfy their burden under the first prong of the anti-SLAPP statute because the challenged claims arise from unprivileged statements made within the Afghan-American community in 2025 and 2026 and non-communicative conduct in Afghanistan, not statements in connection with any judicial proceeding. Plaintiff further contends that prior probate filings are referenced as background context and evidence of actual malice. Under the second prong, Plaintiff argues that his evidentiary submissions show a probability of prevailing on each cause of action. Claiming the motion is frivolous, Plaintiff requests an award of attorney fees against Defendants in the amount of \$15,685 under Code of Civil Procedure section 425.16, subdivision (c)(1).

Requests for Judicial Notice and Evidentiary Objections

Plaintiff requests judicial notice of federal and county housing program guidelines (Exhibits A and B, offered to show the decedent's limited financial means in support of Plaintiff's second-prong showing of falsity, and court records from the 2016 probate proceeding, Estate of Mohammed Aslam Khamosh, Contra Costa County Superior Court Case No. P16-00362. (Exhibits C, D, and E.) The Court takes judicial notice of the existence of the court records in Case No. MSP16-00362, but not the truth of any hearsay statements contained within them. Because Defendants fail to carry their burden on the first prong, the Court does not reach the merits under the second prong and denies the request as to Exhibits A and B as unnecessary.

Defendants object to the declarations of Sana Gull Azimi, Mohamada Gul, Naqibullah Rahimi, and Safia Bunyad offered to show a probability of prevailing on the merits under the second step of the anti-SLAPP analysis. Because the Court does not reach the second step of the anti-SLAPP analysis, the Court declines to rule on Defendants' evidentiary objections as unnecessary to this ruling.

Legal Standard

"A cause of action against a person arising from any act of that person in furtherance of the person's right of petition or free speech under the United States Constitution or the California Constitution in connection with a public issue shall be subject to a special motion to strike, unless the court determines that the plaintiff has established that there is a probability that the plaintiff will prevail on the claim." (Code Civ. Proc. § 425.16 subd. (b)(1).) "The anti-SLAPP statute does not insulate defendants from any liability for claims arising from the protected rights of petition or speech. It only provides a procedure for weeding out, at an early stage, meritless claims arising from protected activity." (*Baral v. Schnitt* (2016) 1 Cal.5th 376, 384 (*Baral*)).

Anti-SLAPP motions are resolved through a two-step analysis. (*Baral, supra*, 1 Cal.5th at p. 384.) At the first step, the defendant must establish the challenged allegations or claims arise out of activity protected under section 425.16. (*Park v. Board of Trustees of California State University* (2017) 2 Cal.5th 1057, 1061 (*Park*); *Baral, supra*, 1 Cal.5th at p. 384.) "At the first step, the moving defendant

bears the burden of identifying all allegations of protected activity, and the claims for relief supported by them.” (*Baral, supra*, 1 Cal. 5th at p. 396.) After identifying the allegations of protected activity, the defendant must demonstrate the activity alleged falls within one of the four categories described in section 425.16 subdivision (e). (*Rand Resources, LLC v. City of Carson* (2019) 6 Cal.5th 610, 620.) In addition to the pleadings, the court may consider declarations and other evidence presented in order to determine what conduct is being challenged, but not to assess the merit of the claims. (*Coretronic Corp. v. Cozen O'Connor* (2011) 192 Cal.App.4th 1381, 1389–1390.)

If the defendant meets this burden, then, at the second step, the burden shifts to the plaintiff to demonstrate the claims have at least “minimal merit” (*Park, supra*, 2 Cal.5th at p. 1061) by making “a prima facie factual showing sufficient to sustain a favorable judgment” (*Baral, supra*, 1 Cal.5th at p. 385; see *id.* at p. 396).

Step 1: Protected Activity

To determine whether a claim arises out of protected activity, the Court considers the elements of each claim and what actions of the defendant supply those elements to form the basis of liability. (See *Starr v. Ashbrook* (2023) 87 Cal.App.5th 999, 1020.) The Court looks to the “core injury-producing conduct” and differentiates between that which is merely evidence in support of a claim versus the basis of liability for a claim. (*Id.* at p. 1020.)

According to Defendants, the entire complaint arises from protected activity because it targets conduct and statements connected to the 2016 probate case. To that end, Defendants point to allegations in the Complaint that Defendant Wakily filed an objection and will contest in 2016, that Defendants Omar and Khair filed declarations in that proceeding, that the probate case forms the factual background of the family's dispute, and that Plaintiff alleges Defendants have “revived” a defamatory campaign.

Under the anti-SLAPP statute, “a claim may be struck only if the speech or petitioning activity itself is the wrong complained of, and not just evidence of liability or a step leading to some different act for which liability is asserted.” (*Park, supra*, 2 Cal.5th at p. 1060; see *Greco v. Greco* (2016) 2 Cal.App.5th 810, 819–820 (*Greco*).) Here, Plaintiff contends that the allegations referring to the 2016 probate proceeding merely provide context for his current claims and establish evidentiary facts, and that none of his claims are premised on protected petitioning activity. Rather, Plaintiff contends that he seeks to impose liability on Defendants based on an extrajudicial defamatory campaign conducted within the Afghan-American community in 2025 and 2026, and physical self-help conduct in Afghanistan. Specifically, Plaintiff alleges that at a May 2025 family gathering in Afghanistan and at a January 17, 2026 memorial prayer gathering in Hayward attended by approximately 200 people, Defendants publicly made false statements accusing Plaintiff of forging his father's will, stealing \$50 million from a nonexistent Turkish bank account to fund his gas station businesses, and pocketing millions of dollars in lease payments from family land. (Compl. ¶¶ 37-46, 58-59.) Plaintiff also alleges that Defendants engaged in extrajudicial acts by traveling to Afghanistan to work through the Taliban regime to remove Plaintiff's name from ancestral land records and register themselves as heirs. (Compl. ¶¶ 5, 44, 49-50, 77-87.) According to Plaintiff, the specific allegations highlighted by Defendants regarding the 2016 probate case are background and evidence demonstrating Defendants' actual malice, because Defendants Omar and Khair previously submitted sworn declarations under penalty of perjury in 2016 confirming the validity of the will and stating that accusations against

Plaintiff were "vicious lies." (Compl. ¶¶ 2, 30-31, 62, 71, 100, 120.)

Defendants' specific arguments that this action arises from the 2016 probate case do not persuade the court that their motion has merit.

First, Defendants argue that Plaintiff's property tort claims arise from protected petitioning activity because Plaintiff alleges he became the owner of the Afghanistan property following the dismissal of the 2016 will contest. Tracing title to a judicial order or decree does not convert an action against a third party for conversion or interference with that property into a SLAPP. (See *City of Cotati, supra*, 29 Cal.4th at p. 78; *Greco, supra*, 2 Cal.App.5th at pp. 824–825.) The injury-producing conduct alleged here is Defendants' travel to Afghanistan to retitle land through an extrajudicial foreign regime.

Second, Defendants cite to allegations that Defendants "revived" a "years-long campaign" (Compl. ¶¶ 1, 4) and Plaintiff's own probate pleadings (characterizing Wakily's contest as dishonorable) to argue that Plaintiff conceded this action targets the 2016 litigation. (Defs.' RJN Exh. 3.) But Plaintiff's phrasing does not alter the legal basis of liability. Here, Plaintiff is not suing for malicious prosecution based on the 2016 will contest, nor is he seeking damages for statements made in connection with that proceeding. Rather, he sues over statements published to private community gatherings in 2025 and 2026.

Third, the specific allegations cited by Defendants from the Complaint do not establish protected activity. Paragraphs 8 through 10 and 13 through 16 simply recite jurisdictional contacts and background history. Whether or not prior probate litigation is sufficient to establish personal jurisdiction or venue, those allegations are not pled to provide a basis for substantive liability. As established, "a claim may be struck only if the speech or petitioning activity itself is the wrong complained of, and not just evidence of liability or a step leading to some different act for which liability is asserted." (*Park, supra*, 2 Cal.5th at p. 1060.) Here, the conduct highlighted by Defendants is either evidence of liability or a step leading to some different act.

Finally, even if portions of the complaint were viewed as touching upon protected activity, Defendants' motion fails procedurally. In their motion, Defendants move for an order striking Plaintiff's complaint in its entirety pursuant to Code of Civil Procedure section 425.16. (Notice of Motion, p. 1.) Defendants do not identify any specific allegations or individual cause of action that should be stricken in their motion. Likewise, in their brief, Defendants argue that the entire action arises from petitioning activity connected to the 2016 probate proceeding.

"[T]o the extent [Plaintiff] has alleged various acts as a basis for relief and not merely as background, each act or set of acts must be analyzed separately under the usual two-step anti-SLAPP framework." (*Bonni v. St. Joseph Health System* (2021) 11 Cal.5th 995, 1012.) Defendants "bear the burden of showing that each allegation supporting [Plaintiff's] claim of recovery is one that rests on protected activity." (*Id.* at p. 1012.)

In *Park v. Nazari* (2023) 93 Cal.App.5th 1099 (Nazari), the defendants similarly noticed their motion "for an order striking each of [plaintiff's c]omplaint [sic]." (*Id.* at p. 1105.) The Nazari defendants argued all of the claims arose from protected activity, but the trial court rejected this undifferentiated approach because the notice of motion targeted only the entire complaint, and the appellate court affirmed. (*Id.* at pp. 1105–1106.) "Because the Nazaris moved to strike only the entire complaint, and

did not identify in their motion individual claims or allegations that should be stricken even if the entire complaint were not, the trial court was permitted to deny the anti-SLAPP motion once it concluded—correctly—that the complaint presented at least one claim that did not arise from anti-SLAPP protected conduct." (*Id.* at p. 1106.) Because Defendants have "taken the position that the entire complaint arises from protected activity and requests that the entire complaint be stricken", it follows that Defendants do not carry their "first-step burden so long as the complaint presents at least one claim that does not arise from protected activity." (*Id.* at pp. 1106, 1108.)

Here, the property-based claims (including the third cause of action for conversion, the ninth cause of action for trespass to chattels, and the tenth cause of action for declaratory relief) do not arise from protected activity. The alleged taking and physical retitling of the Afghanistan property, whether or not actually wrongful, does not fall within any category of protected activity described in Code of Civil Procedure section 425.16, subdivision (e). The trip to Afghanistan and efforts to alter land records does not constitute a "written or oral statement or writing" under subdivisions (e)(1), (e)(2), or (e)(3). Only "one of the four categories of protected activity covers conduct (§ 425.16, subd. (e)(4) ['conduct in furtherance of the exercise of the constitutional right of petition or the constitutional right of free speech']) and that type of protected activity must have taken place 'in connection with a public issue or an issue of public interest.'" (*PrediWave Corp. v. Simpson Thacher & Bartlett LLP* (2009) 179 Cal.App.4th 1204, 1226; see *Greco, supra*, 2 Cal.App.5th at p. 823.) Even if Defendants' efforts to claim heirship in Afghanistan could be considered conduct in furtherance of petitioning, it was not "in connection with a public issue or an issue of public interest." "The most commonly articulated definitions of 'statements made in connection with a public issue' focus on whether (1) the subject of the statement or activity precipitating the claim was a person or entity in the public eye; (2) the statement or activity precipitating the claim involved conduct that could affect large numbers of people beyond the direct participants; and (3) whether the statement or activity precipitating the claim involved a topic of widespread public interest. [Citations.]" (*Wilbanks v. Volk* (2004) 121 Cal.App.4th 883, 898.) None of these factors is present here. The parties are not in the public eye, their private family grievances appear to affect no one beyond the immediate family, and their accusations of wrongdoing over property do not touch on any matter of widespread public interest.

A cause of action may contain allegations of both protected and unprotected activity, loosely referred to as a "mixed cause of action," but an anti-SLAPP motion can reach a claim based on protected activity regardless of how the pleading is organized. (*Baral, supra*, 1 Cal.5th at pp. 382, 392.) However, "[w]here there are 'mixed' causes of action involving both protected and nonprotected activity, it is the moving party's burden to identify in the motion the allegations of protected activity and the claims arising from it. A motion directed only to an entire complaint may be denied if some claims involve nonprotected activity." (Weil & Brown, Cal. Practice Guide: Civil Procedure Before Trial [TRG 2024] ¶ 7:772, citing *Baral, supra*, 1 Cal.5th at p. 391.)

Because the complaint contains causes of action that do not arise from protected activity, and because Defendants brought a blanket motion directed to the complaint in its entirety without identifying specific claims or allegations to be excised, the motion must be denied. Even assuming that other causes of action arise from protected activity (which the Court does not find), Defendants have failed to satisfy their threshold burden under the first prong. (*Nazari, supra*, 93 Cal.App.5th at pp. 1106, 1108.)

Step 2: A Probability of Prevailing

Because Defendants have failed to establish that Plaintiff's claims arise from protected activity under section 425.16, subdivision (e), the Court need not reach the second prong of the anti-SLAPP analysis. (*Baral, supra*, 1 Cal.5th at p. 384 [holding that only if the defendant makes the threshold showing does the burden shift to the plaintiff to demonstrate a probability of prevailing on the merits].) Consequently, the Court does not reach Defendants' remaining arguments, including their assertion of the litigation privilege, or their various challenges to the sufficiency of the individual causes of action.

Attorney Fees

The Court denies Defendants' request for attorney fees because they did not prevail, and Plaintiff's request for fees is likewise denied.

Plaintiff requests an award of attorney fees and costs in the amount of \$15,685 under Code of Civil Procedure section 425.16, subdivision (c)(1). Under that provision, if the court finds that a special motion to strike is frivolous or solely intended to cause unnecessary delay, the court shall award costs and reasonable attorney fees to a prevailing plaintiff pursuant to section 128.5. (*Moore v. Shaw* (2004) 116 Cal.App.4th 182, 198–199.) A determination of frivolousness requires a finding that the motion is "totally and completely without merit" (Code Civ. Proc., § 128.5, subd. (b)(2)), meaning that "any reasonable attorney would agree such motion is totally devoid of merit." (*Moore, supra*, at p. 199; see also *Clarity Co. Consulting, LLC v. Gabriel* (2022) 77 Cal.App.5th 454, 465.)

Here, the Court does not find that Defendants' motion was frivolous or brought in bad faith. Plaintiff's complaint discusses the 2016 probate proceedings extensively and frames the current controversy in light of that history. While the Court concludes that the claims ultimately do not fall within the scope of section 425.16, subdivision (e), the legal arguments advanced were understandable and within the range of issues reasonable counsel might raise. Nothing suggests the motion was brought solely to cause delay or harassment.

Even if the Court found the motion frivolous, it would deny fees because Plaintiff did not offer sufficient evidence to support his requested award of \$15,685. Under the lodestar method applicable to attorney fee awards under section 425.16, the court begins by determining the reasonable hours spent and multiplying that figure by a reasonable hourly rate. (*Ketchum v. Moses* (2001) 24 Cal.4th 1122, 1135–1136.) The prevailing party bears the burden to present time records showing the hours spent on the motion. (*Horsford v. Board of Trustees* (2005) 132 Cal.App.4th 359, 396.) Counsel sets forth hourly rates of \$650 for himself and \$550 for an associate and requests a total sum of \$15,685. (Horst Decl., ¶¶ 8, 10.) However, the record contains no billing records or breakdown of the time spent on the motion. Without this information, the Court cannot verify that the fees were reasonably and necessarily incurred in connection with the motion. (See, e.g., *569 East County Boulevard LLC v. Backcountry Against the Dump, Inc.* (2016) 6 Cal.App.5th 426, 441.)

Disposition

Based on the foregoing, the motion is **denied**.